IN THE CIRCUIT COURT '1' HELD IN ACCRA ON FRIDAY THE 2ND DAY OF MAY 2025 BEFORE HER HONOUR CHRISTINA EYIAH-DONKOR CANN (MRS.), CIRCUIT COURT JUDGE

SUIT NO: C5/176/2023

MARIAN NAA AKU MINGLE **H/NO8, 3RD LANE** **OFF NII AFROTSE STREET** **WESTLAND-ACCRA**	**PETITIONER**
VRS	
GILBERT TAYLOR **H/NO BG/80** **OPP. LEKMA HOSPITAL** **TESHIE, ACCRA**	**RESPONDENT**

JUDGMENT

INTRODUCTION

The parties were married under part 111 of the Marriages Act, 1971 (Act 367) on the 11th August, 2018 at the Saint Barnabas Anglican Church, Osu in the Greater Accra Region of Ghana. Whilst the petitioner is a civil engineer, the respondent is a businessman and entrepreneur. On the 17th February 2023, the petitioner filed a petition for divorce and averred that the marriage has broken down beyond reconciliation and prayed the court for the following reliefs:

"a) A declaration that the marriage celebrated between the Parties on the 11th day of August, 2018 has broken down beyond reconciliation

a) *An order dissolving the marriage celebrated between the Parties on the 11th day of August, 2018.*
b) *An order directed at the Petitioner for custody of the child of the marriage with an order for reasonable access spelling out specific times of access to the Respondent.*
c) *An order directed at the Respondent to pay the educational and medical bills of the child of the marriage until she attains the age of majority.*
d) *An order directed at the Respondent to pay an amount of One Thousand Five Hundred Ghana cedis (GH¢1,500) monthly with an upward increase of twenty percent every two years for the maintenance of the child of the marriage."*

The respondent filed his Answer to the petitioner's Petition on the 27th June, 2023. The petitioner further filed a Reply to the respondent's Answer on the 22nd December, 2023

Since this is a matrimonial cause, it is the direct provisions of the Matrimonial Causes Act, 1971 (Act 367) which should apply.

Section 2 (2) of the Matrimonial Causes Act, 1971 (Act 367) provides that:

"On a petition for divorce it shall be the duty of the court to inquire, so far as is reasonable, into facts alleged by the petitioner and the respondent."

The facts relied on by the parties must therefore be pleaded and placed before the court; otherwise, the court cannot perform its statutory duties under the above section of this Act. The particulars set out in detail the facts relied on by the petitioner and the respondent to establish the allegation that the marriage has broken down beyond reconciliation.

The relevant particulars of the petitioner's Petition are as follows:

"PARTICULARS OF UNREASONABLE BEHAVOUR

12. *The Petitioner avers that the Respondent has consistently since the inception of the marriage failed to reasonably perform his spousal and parental duties and has most*

certainly treated the Petitioner with contempt, exhibited gross irresponsibility, reckless behaviour and sought to ridicule the Petitioner both privately and publicly by his actions and utterances.

a) *The Petitioner says that the Respondent has been extremely irresponsible by refusing to settle prenatal, post-natal and hospital delivery bills.*

b) *The Petitioner says that Respondent's attitude towards the payment of monies relating to school fees, feeding fees and providing funds for clothing as well as medical fees for the child of the marriage has been characterized by extreme hesitancy and lethargy.*

c) *Petitioner says that when she was pregnant the Respondent was happy to pass on his paternal responsibilities and was lukewarm towards expending on drugs for prenatal care and tried to shift that responsibility to the Petitioner's mother to pay for the drugs.*

d) *Petitioner says that when she was about delivering the respondent was reluctant to donate blood for her and was rather gunning for Petitioner's brother to donate blood.*

e) *Petitioner says that even after the birth of the child, the Respondent refused to buy clothes for the child and insisted that Petitioner's father should cater for the clothes.*

f) *The Petitioner says that Respondent has made no efforts to curb this worrisome behaviour of gross irresponsibility which has only sought to deepen Petitioner's frustration with the Respondent.*

g) *The Petitioner says there is no ongoing intimacy in the marital relationship and all conjugal duties in that nature have been neglected by the Respondent for three years.*

h) *Petitioner again states that she consistently made provisions for Respondent when the parties cohabited and the child and expended all resources for their comfort in the face of Respondent's unwillingness to provide.*

i) Petitioner states that she has given various sums of money to Respondent as loans over the years even from the very beginning of the marriage which Respondent has refused to pay back.

j) Petitioner states that she also loaned GH¢6,000.00 which was meant for her Project Management Programme to Respondent for rent but till date Respondent has refused to pay same.

k) Petitioner says that she also lent an amount of Nine Thousand Three Hundred Ghana Cedis (GH¢9,300.00) to the Defendant for his travel plans and he has willfully refused to pay same despite persistent demands.

l) Petitioner avers that the loans she has given out to Respondent have stalled her professional progression since she had to divert resources to help out Respondent.

m) Petitioner states that despite the above state gestures, Respondent has taken to complaining to other persons outside the marriage in the form of lies that Petitioner does not support him and has proven exceedingly ungrateful and inconsiderate.

n) Petitioner will state that the Respondent is a manipulative opportunist who would not provide for the family unless prodded by Petitioner to do so.

o) Indeed, the Respondent only makes a sad excuse of an effort after much prodding in catering to the basic needs of the child of marriage.

p) Petitioner states that in the face of all these Respondent still portrays Petitioner as an irresponsible wife to his friends and family.

q) Petitioner says that Respondent's constant behaviour of embarrassing, harassing and shaming her is not only exhibited and actualized in private but also publicly and that on three (3) occasions the Respondent threatened to come to the Petitioner's office to come to create a scene and 'display' there.

r) The Petitioner further states that the constant behaviour of Respondent aimed at embarrassing her has resulted in emotional distress of Petitioner.

s) Further to the above, the Petitioner states that the Respondent is in the constant habit of blaming the Petitioner for everything and has refused to accept any fault or to take accountability for any of his own actions.

t) Petitioner states that this habit of the Respondent is emotional and psychological abuse of the Petitioner by the Respondent and has also accused the Petitioner of forcing the Respondent into marriage.

u) Petitioner further states that the parties have not had sexual intercourse from 2019 to date.

13. Indeed, the Respondent has communicated to the Petitioner that he is no longer interested in the marriage and his actions attest to that fact since the parties do not speak presently or have any other relationship apart from co-parenting.

14. Petitioner says that all attempts to have a reasonable and amicable settlement of the issues bedeviling the marriage have failed spectacularly.

15. Petitioner states that when she suggested that the parties attempt counseling with a professional counselor, the Respondent promptly shot down the idea in his usual derisive manner.

16. Petitioner states that when her family invited the Respondent for mediation, he refused to honour the invitation.

17. Petitioner states that the parties did not acquire any joint property during the pendency of the marriage.

18. Petitioner also states that their child is presently living with the Petitioner in Westland, Accra."

SUMMARY OF EVIDENCE BY THE PETITIONER AND THE RESPONDENT

The petitioner testified herself but did not call nay witness.

The respondent also testified himself and called no witness.

In several decided cases, the superior courts have held that there are situations where the testimony of a single witness will suffice to prove a case.

In the case of **Kru vrs Saoud Bros & Sons (1975) 1 GLR 46**, the Court of Appeal held:

> *"Judicial decisions depend on the intelligence and credit and not the multiplicity of witnesses produced at the trial."*

Also, in the case of **Takoradi Flour Mills vrs Samir Faris (2005-2006) SCGLR,** the Supreme Court held affirming the position of the law that:

> *"(a) A tribunal of facts can decide an issue on the evidence of one party. A bare assertion on oath by a single witness might in the proper circumstance of a case be enough to form the basis of a judicial interpretation. The essential thing is that the witness is credible by the standard set in section 80 (2) of the Evidence Act, 1975."*

Again, in the case of **Ghana Ports and Harbours Authority vrs Captain Zavi & Nova Complex Ltd (2007-2008) SCGLR 806** the Supreme Court held thus:

> *"It is true that witnesses are weighed but not counted and that a whole host of witnesses are not needed to prove a particular point."*

The parties mutually agreed to resolve the ancillary reliefs in this matter amicably and they reached an agreement on the 5th February, 2025. The parties subsequently filed the terms of settlement and same was adopted as the consent judgment of the court on the 21st February, 2025.

<u>THE PETITIONER'S CASE</u>

The petitioner testified that she got married to the respondent on the 11th August, 2018 at the Saint Barnabas Anglican Church, Osu-Accra. After the marriage, they

cohabited at LEKMA and Teshie. She instituted this action because the marriage between the respondent and her has broken down beyond reconciliation

It is the evidence of the petitioner that they have been separated for the past four years and have not cohabited nor lived as man and wife during the period of the separation and there has also been no consensual sexual contact during this period. When she first moved out to stay with her parents after the birth of their daughter, she had every intention of returning to their rented premises, However, the respondent refused to renew the rent and she was forced to stay with her parents, When their marital problems became compounded, she thought it unwise to move back into any rented premises with the respondent. As a result, there is no ongoing intimacy in the marriage and all conjugal duties in that nature have been rejected by the respondent for more than three years. They have only one child of the marriage namely Olma Taylor.

It is further the evidence of the petitioner that the respondent has behaved in such a manner that she cannot reasonably be expected to live with him as husband and wife. Since the inception of the marriage, the respondent has failed to reasonably perform his spousal and parental duties and has with most certainty treated her with contempt exacerbated by gross irresponsibility, reckless behaviour and ridiculing her both privately and publicly by his actions and utterances. The respondent has been extremely irresponsible by refusing to settle prenatal, post-natal and hospital delivery bills. The respondent's attitude towards the payment of monies relating to school fees, feeding fees and providing funds for clothing as well as medical fees for the child of the marriage has been characterized by extreme hesitancy and lethargy. When she was pregnant, the respondent refused to expend any drugs for prenatal care and refused to consider donating blood and would always insist that her mother should pay for the drugs and his brother should donate the blood. The petitioner stated that even after the birth of their child, the respondent refused to buy clothes for the child and insisted that her father should cater for the clothes. The respondent has made no efforts to curb this

worrisome behaviour of gross irresponsibility which has only sought to deepen her frustration with him. The respondent has recruited and encouraged members of his family such as his brother and sister to verbally abuse her family members and her on numerous occasions without any provocation. She consistently made provisions for the respondent and the child when they cohabited and expended all resources for their comfort in the face of respondent's unwillingness to provide. She has given various sums of money to respondent as loans over the years even from the very beginning of the marriage which respondent has refused to pay back. She also loaned six thousand Ghana cedis (GH¢6,000.00) which was meant for her Project Management Programme to respondent for rent but till date respondent has refused to pay same. According to the petitioner, the loans she has given out to the respondent have stalled her professional progression since she had to divert resources to help the respondent. Despite the above gestures, the respondent has taken to complaining to other persons outside the marriage in the form of lies that she does not support him and has proven exceedingly ungrateful and inconsiderate. She continued that the respondent is a manipulative opportunist who would not provide for the family and on the rare occasions he did, he had to be prodded by her for doing so. Indeed, the respondent only makes a sad excuse of an effort after much prodding in catering to the basic needs of the child of marriage. In the face of all these, respondent still portrays her as an irresponsible wife to his friends and family. The respondent's constant behaviour of embarrassing, harassing and shaming her is not only exhibited and actualized in private but also publicly. The constant behaviour of respondent aimed at embarrassing her has resulted in her emotional distress. The respondent is in the constant habit of blaming her for everything and has refused to accept any fault or to take accountability for any of his own actions.

As far as the petitioner is concerned, the marriage had broken down and she would never be reconciled with the respondent. She would not go back to the

respondent and no more diligent efforts at reconciliation would succeed. She therefore prayed the court to dissolve the marriage

THE RESPONDENT'S CASE

It is the evidence of the respondent that the petitioner lived with her mother after childbirth and started exhibiting unreasonable behaviour. According to the respondent, with the slightest unprovoked statement, the petitioner will burst out of anger. His sister once told the petitioner jokingly that she would throw the petitioner's baby high up and the petitioner however burst in anger to the surprise of all. The respondent continued that the petitioner indicated to him that she would not stay at LEKMA any longer because she wants a two-bedroom house and since he could not afford that, the petitioner immediately moved to her mother's house at Westland, Accra. Together with the petitioner, they both provided money and paid for all the hospital bills. The petitioner opted for one in a room instead of the sideward at the hospital and the petitioner's mother added some amount to what he had for the payment. He stayed with petitioner throughout her post-natal periods and he indicated to the petitioner that he will pay one thousand Ghana cedis (GH¢1,000.00) whilst the petitioner also pays five hundred Ghana cedis (GH¢500.00). It was just on one occasion that the petitioner's mother paid one thousand five hundred Ghana cedis (GH¢1,500.00) of which he later reimbursed her. He donated blood to the petitioner. He went with the petitioner herself and they were issued a receipt to that effect. He never insisted that the petitioner's father cater for the child's clothes. The petitioner's father is a tailor and sometimes sews for the child. He catered for the child's cloth and he still does. There has not been any intimacy and conjugal duties for that period because the petitioner has decided to stay with her parents. Even upon several calls to her through her parents, the petitioner has refused to come back to him. It is also the evidence of the respondent that when the child was a year old, he lost his job but yet still he never neglected my basic responsibilities and kept buying things for the child including diapers out of the occasional monies that came into his hands.

Indeed the petitioner paid for the initial rent. However, he paid for the renewal and subsequent renewals of the rent. According to the respondent, he had an opportunity to travel to Canada and the total cost of the travel was twenty two thousand Ghana cedis (GH¢22,000.00). The petitioner paid seven thousand three hundred Ghana cedis (GH¢7,300.00) and never made it known to him that it was a loan to him. He funded the rest of the travel expenses. However, because of the lockdown, the trip was canceled. The petitioner all along made him get the impression that such payment was given to him as a way of a support from a wife to a husband but not a loan. He gave four hundred Ghana cedis (GH¢400.00) to the petitioner to enable her to register for her Professional Engineering Examination. Unfortunately, the petitioner could not pass the examination. Somewhere in 2021, he again gave the petitioner six hundred Ghana cedis (GH¢600.00) which fortunately she passed the examination. It is further the evidence of the respondent that anytime he called the petitioner, she does not answer his calls. Out of curiosity and care he went to the petitioner's office to find out the reason but he never caused any scene since that is unusual and uncharacteristic of him. He also opted for a Counsellor of the petitioner's choice however, he never heard from the petitioner till date. He initially suggested to the petitioner that both of them are capable of solving whatever that is happening between them but to no avail.

FINDINGS OF PRIMARY FACTS

From the evidence on the record, the following facts are not in dispute:

1. That the parties were married under the ordinance on the 11th August, 2018.
2. That the parties have one issue of the marriage.

ISSUE FOR DETERMINATION

The **main issue** for determination is as follows:

Whether or not the marriage contracted between the Marian Naa Aku Mingle, the petitioner herein and Gilbert Taylor the respondent herein on the 11th August, 2018 *at the Saint Barnabas Anglican Church, Osu in the Greater Accra Region has broken down beyond reconciliation?*

ANALYSIS OF THE RELEVANT SECTIONS OF THE MATRIMONIAL CAUSES ACT, 1971 (ACT 367)

Before I deal with the only issue, I now wish to set out the relevant sections of the Matrimonial Causes Act, 1971 (Act 367) namely sections 1 (2), 2 (1), and 2 (3).

The only ground upon which a marriage may be dissolved is where the Petitioner proves that the marriage has broken down beyond reconciliation.

Section 1 (2) of the Matrimonial Causes Act, 1971 (Act 367) provides thus:

> *"The sole ground for granting a petition for divorce shall be that the marriage has broken down beyond reconciliation."*

The grounds upon which a marriage would be said to have broken down beyond reconciliation are six (6) and the proof of one or more of them to the satisfaction of the Court may be a valid ground to the dissolution of the marriage. The six grounds are provided in sections 2 of the Matrimonial Causes Act, 1971 (Act 367). They are as follows:

> *"2 (1) For the purpose of showing that the marriage has broken down beyond reconciliation the petitioner shall satisfy the court of one of the following facts:*
>
> *(a) That the respondent has committed adultery and by reason of the adultery the petitioner finds it intolerable to live with the respondent;*

(b) That the respondent has behaved in a way that the petitioner cannot reasonably be expected to live with the respondent;

(c) That the respondent has deserted the petitioner for a continuous period of at least two years immediately preceding the presentation of the petition.

(d) That the parties to the marriage have not lived as husband and wife for a period of at least two years immediately preceding the presentation of the petition and the respondent consents to the grant of a decree of divorce, provided that the consent shall not be unreasonably withheld, the Court may grant a petition for divorce under this paragraph despite the refusal;

(e) That the parties to the marriage have not lived as husband and wife for a continuous period of at least five years immediately preceding the presentation of the petition; or

(f) That the parties to the marriage have, after diligent effort, been unable to reconcile their differences.

Under section 2 (3) of the Matrimonial Causes Act, 1971 (Act 367):

"*Although the Court finds the existence of one or more of the facts specified in subsection (1), the Court shall not grant a petition for divorce unless it is satisfied, on all the evidence, that the marriage has broken down beyond reconciliation.*"

BURDEN ON THE PETITIONER

In a petition for divorce, the burden that is cast on a petitioner is to lead sufficient evidence to enable a finding of those facts in issue to be made in her favour as required by sections 10 and 14 of the Evidence Act, 1975 (NRCD 323).

See: **Dzaisu v Ghana Breweries Limited [2009] 6 GMJ 111 S.C**

Ackah v Pergah Transport Limited [2011] 31 GMJ 174 S.C

Sections 11(4) and 12 (1) of the Evidence Act 1975, (Act 323) provides that the standard burden of proof in all civil matters is proof by the preponderance of probabilities and there is no exception to it except where the issue to be resolved in the civil suit borders on criminality such as fraud and forgery.

The Supreme Court also in the case of **Adwubeng v Domfeh [1996-97] SCGLR 660** unambiguously resolved the question of standard burden of proof.

In the case of **African Mining Services v Larbi [2010-2012] GLR 579,** the Court held that the burden of persuasion in civil matters requires the person who has the evidential burden to discharge, to produce sufficient evidence such that a reasonable mind, such as this Court, will come to the conclusion that the existence of the fact is more probable.

It is therefore the petitioner's duty as required by law to produce the evidence of the facts in issue such that a reasonable mind, such as this Court, will come to the conclusion that from the existence of the facts, it is more probable that the marriage has broken down beyond reconciliation and that duty must be satisfactorily discharged.

Furthermore, the ground upon which the petitioner seeks the dissolution of the marriage contracted between herself and the respondent is unreasonable behaviour which the respondent denies. Therefore, the onus is on the petitioner to lead cogent and credible evidence to prove her allegations.

ANALYSIS OF THE EVIDENCE ON RECORD

ISSUE

Whether or not the marriage contracted between the Marian Naa Aku Mingle, the petitioner herein and Gilbert Taylor the respondent herein on the 11th August, 2018 *at the Saint Barnabas Anglican Church, Osu in the Greater Accra Region has broken down beyond reconciliation?*

A. UNREASONABLE BEHAVIOUR BY THE RESPONDENT

The petitioner in paragraph 11 of her Petition averred that the marriage has broken down beyond reconciliation as the respondent has behaved unreasonably towards her in a way that she cannot reasonably be expected to live with him as husband and wife by:

i. failing to perform his spousal and parental duties since the inception of the marriage,
ii. ridiculing her both privately and publicly by his actions and utterances,
iii. refusing to settle prenatal, post-natal, hospital delivery bills, expend any drugs for prenatal care to consider donating blood and insisting that her mother should pay for the drugs and his brother should donate the blood,
iv. refusing to buy clothes for the child and insisting that her father should cater for the clothes,
v. recruiting and encouraging members of his family such as his brother and sister to verbally abuse her family members and her on numerous occasions without any provocation and
vi. refusing to pay various sums of money loaned him over the years even from the very beginning of the marriage which respondent has refused to pay back.

Although the law is that when a party has given evidence of a material fact and he was not cross-examined upon that, he need not call further evidence of that fact and the opponent who failed to cross-examine him will be deemed to have acknowledged, *sub silentio*, that averment by the failure to cross examine as enunciated in the case of **Quagraine vrs Adams [1981] GLR 599, Akyere-Djamson vrs Duagbor [1989-90] 1 GLR 223, SC, Fori vrs Ayirebi (1966) GLR 627 SC** and **Western Hardwood Ent. Ltd vrs W/A Ent. Ltd. (1998-1999) SCGLR 10**, the respondent's counsel's failure to cross-examine the petitioner on her testimony in respect of the allegation of unreasonable behaviour by the respondent, does not in

any way suggest that the testimony or the assertion of the petitioner was true or has been admitted. This is because the respondent denied the said allegation of unreasonable behaviour in his Answer to the Petition.

The onus was therefore on the petitioner to prove that the respondent has behaved in such a way that she cannot reasonably be expected to live with him. However, she failed to lead evidence to prove the various acts of unreasonable behaviour by the respondent. The petitioner aside mounting the witness box and maintaining that the respondent has behaved in such a manner that she cannot reasonably be expected to live with him was not able to adduce cogent and credible evidence.

In the case of **Zabrama v Segbedzi (1991) 2 GLR 221,** the Court of Appeal restated the time honoured principle in **Majolagbe v Larbi (1959) GLR 190** as follows:

"A person who makes an averment or assertion which is denied by his opponent has the burden to establish that his averment or assertion is true. And he does not discharge this burden unless he leads admissible and credible evidence from which that fact or facts he asserts can properly and safely be inferred."

Takoradi Flour Mills vrs Samir Faris (2005-2006) SCGLR 883.

Courage Adonoo vrs Fan Milk Ltd (2006) 6 MLRG 211 CA.

T. K. Serbeh &Co Ltd vrs Mensah (2007) MLRG SC 1.

Delmas America Africa Line Incorporation vrs Kisko Products Ghna Ltd (2007) 11 MLRG 141 SC.

The petitioner thus failed to prove to the satisfaction of this court that the respondent has behaved in such a manner that she cannot reasonably be expected to live with him.

The petitioner's charge of unreasonable behaviour is therefore a mere allegation without a scintilla of evidence against her husband. It was as if petitioner was

shopping for any available ground in an attempt to convince the court that her husband has behaved unreasonably towards her so that the marriage could be dissolved.

B. PARTIES HAVE NOT LIVED TOGETHER AS HUSBAND AND WIFE FOR A CONTINUOUS PERIOD OF FIVE YEARS

The petitioner in her testimony before this court stated that the last time she and the respondent lived together as husband and wife was in 2020. She testified to that fact and stated further whilst answering questions under cross-examination that they have not live together as husband and wife from the year 2020.

The petitioner answered the following questions under cross-examination:

"Q. You would agree with me that you have been living apart from the respondent since 2020, is that the case?

A. Yes my lady."

The respondent also stated whilst answering questions under cross-examination that he and the petitioner have not lived together as husband and wife since the year 2020.

An excerpt is as follows:

"Q. It is also a fact that you and the petitioner have not lived together as husband and wife since the year 2020?

A. Yes my lady."

From the evidence on record, from the year 2020 when the parties separated which is more five years now, the parties have not lived together as husband and wife.

I am satisfied that the petitioner proved her case by the preponderance of probabilities that they have not lived together as a married couple for a continuous

of five years immediately preceding the presentation of the petition as provided under section 2 (1) (e) of the Matrimonial Causes Act, 1971 (Act 367) and this court holds same.

C. THE PARTIES TO THE MARRIAGE HAVE, AFTER DILIGENT EFFORT, BEEN UNABLE TO RECONCILE THEIR DIFFERENCES

The petitioner stated in paragraph 14 of her Petition that all attempts to have a reasonable and amicable settlement of the issues bedeviling the marriage have failed spectacularly and she further lead evidence to that fact.

The following dialogue ensued between counsel for the respondent and the petitioner:

"Q. Have you together with the respondent attempted to settle the issues that occasioned this petition?

A. Yes my lord.

Q. You would agree with me that the marriage has broken down beyond reconciliation?

A. Yes my lord."

The respondent also stated whilst answering questions under cross-examination that all attempts at settling their differences have proved futile.

An excerpt is as follows:

"Q. It is a fact that after diligent efforts, you and the petitioner have been unable to settle your differences in the marriage?

A. Yes my lord."

From the totality of the evidence on record, this court finds as a fact that the parties after diligent efforts have been unable to reconcile their differences.

The court is satisfied that the petitioner proved her case by the preponderance of probabilities that she and the respondent after diligent efforts have been unable to reconcile their differences as provided under section 2 (1) (f) of the Matrimonial Causes Act, 1971 (Act 367) and this court holds same.

The next question to consider is the requirement of section 2 (3) of the Matrimonial Causes Act, 1971 (Act 367) whether the marriage between the petitioner and the respondent has broken down beyond reconciliation.

On a proper construction of this sub-section of the act, the court can still refuse to grant a decree even when one or more of the facts set in section 2 (1) of the Matrimonial Causes Act, 1971 (Act 367) have been established. It is therefore incumbent upon a court hearing a divorce petition to carefully consider all the evidence before it; for a mere assertion by one party that the marriage has broken down will not be enough.

See: **Dictum of Bagnall J in the case of Ash v. Ash [1972] 1 ALL ER 582 at page 586.**

From the evidence on record, there is no indication that the parties are prepared or willing to cooperate once again to find a solution to their differences. The court finds that the marriage has broken down and there is no hope or reconciliation at this stage as the parties themselves have told this court and it is better for this court to dissolve this marriage so that the parties can go their separate ways and be put out of their miseries.

To insist that the petitioner and the respondent continue to live together as man and wife would be turning a contract of marriage into one of slavery regardless of the psychological and emotional trauma on the parties or one of them and allowing this marriage to strive on hopelessly, helplessly, and lack of trust. This is because matrimonial causes are unique because they involve two persons who are physically, emotionally and spiritually involved with each other unlike other

causes of action like land cases, contract, constitutional, chieftaincy etc. which do not involve intimacy between two people. No doubt the Bible declares the unique relationship as the two becoming one flesh.

I cannot but agree with *Osei-Hwere* J (*as he then was*) in the case of **Donkor v. Donkor (1982-83) GLR 1156 at page 1158** as follows*:*

"The Matrimonial Causes Act (1971) Act 367 does not permit spouses married under the Ordinance to come to pray for dissolution of a marriage just for the asking. Where the court is satisfied from the conduct of the parties that the marriage has in truth and in fact broken down beyond reconciliation it cannot pretend and insist that they continue as man and wife. To do so would be turning a contract of marriage into one of slavery regardless of the psychological effect on the parties or one of them."

Despite the petitioner's failure to prove her wild allegation of unreasonable behaviour against her husband, there are several other compelling grounds which prove that the marriage between the parties has gone beyond retrieval. I am satisfied that regarding the burden of persuasion, the petitioner produced sufficient evidence to persuade me to come to the conclusion per the existence of the fact that the marriage had broken down beyond reconciliation.

The court finds and holds from the totality of the evidence on record that, the marriage contracted between Marian Naa Aku Mingle, the petitioner herein and Gilbert Taylor the respondent herein on the 11th August, 2018 at the Saint Barnabas Anglican Church, Osu in the Greater Accra Region has broken down beyond reconciliation and the justifications are that from the evidence:

i. the parties to the marriage have not lived as husband and wife for a continuous period of at least five years immediately preceding the presentation of the petition; and
ii. the parties to the marriage have, after diligent effort, been unable to reconcile their differences.

Thus, a *prima facie* case has been made by the petitioner that warrants the dissolution of the marriage. The requirements of section 1 (2) of the Matrimonial Causes Act, 1971 (Act 367) has thus been met by the petitioner.

I hereby declare the marriage contracted between Marian Naa Aku Mingle, the petitioner herein and Gilbert Taylor the respondent herein on the 11th August, 2018 at the Saint Barnabas Anglican Church, Osu in the Greater Accra Region dissolved.

CONCLUSION

1. The marriage solemnized on the 11th day of August, 2018 at the Saint Barnabas Anglican Church, Osu in the Greater Accra Region between Marian Naa Aku Mingle, the petitioner herein and the Gilbert Taylor the respondent herein with Certificate Number SBAC/21/2018 Licence Number AMA/101805506/2018 is hereby dissolved.
2. The petitioner is granted custody of the child of the marriage with reasonable access to the respondent.
3. The respondent is ordered to pay to the petitioner the sum of Seven Hundred and Fifty Ghana cedis (GH¢750) as maintenance monthly.
4. The parties are ordered to equally contribute towards the payment of the educational bills of the child of the marriage.
5. Each party shall bear his/her cost of the instant action.

COUNSEL

ANITA NAYRAM SCOTT FOR LOUIS KUDJOE BLEWUSI FOR THE PETITIONER PRESENT

ROLAND SELASIE KOFI TORWO FOR NANA KOFI SAFO KATANKA FOR THE RESPONDENT IS PRESENT

PARTIES PRESENT

(SGD)

H/H CHRISTINA EYIAH-DONKOR CANN (MRS.)

(CIRCUIT COURT JUDGE)